reasonable sanction on Plaintiff is appropriate, but that sanction will not be the full amount requested by Defendants. Under the totality of the circumstances and the limited nature of what is being considered and ordered, the Court **will award sanctions against Plaintiff Corinne Rees and her counsel jointly in the amount of $3,500**.

Defendants' Motion is therefore **granted**.

19. 9:00 AM CASE NUMBER: C25-02683
CASE NAME: ASCENT INVESTMENTS COMPANY LLC VS. PREMDIP DHOOT
HEARING IN RE: APPLICATION AND HEARING FOR RIGHT TO ATTACH ORDER AND ORDER FOR ISSUANCE OF WRITE RE: HD 2670 WALNUT BLVD MEMBER, LLC AND PREMDIP S. DHOOT FILED BY: ASCENT INVESTMENTS COMPANY LLC
FILED BY:
TENTATIVE RULING:

Parties to appear. The applications are conditionally granted, as discussed below. Prior to the hearing, plaintiff shall re-file a signed copy of the Declaration of Jason Steinle in Support of the Reply, originally filed on January 16, 2026 and again filed on March 4, 2026, both unsigned. Should plaintiff require additional time to file, a continuance will be discussed at the hearing.

Background

Before the Court are two applications by plaintiff, Ascent Investments Company, LLC, to attach property of defendant, HD 2670 Walnut Blvd Member, LLC and its member and manager, defendant Premdip S. Dhoot.

This case arises from a loan by plaintiff to defendant, HD 2670 Walnut Blvd Member, LLC. On August 24, 2022, defendant, Premdip S. Dhoot, signed a promissory note on behalf of HD 2670 Walnut Blvd Member, LLC. The note was for the principal amount of $200,000, to be re-paid, along with an additional $48,328.77 "Lender's Return," by January 1, 2024 ("Maturity Date"). (See Declaration of Jason Steinle in Support of Application for Right to Attach Order and Writ of Attachment, hereinafter "Steinle Decl.," Ex. 1 [Promissory Note] and Ex. 2 [Payment Guaranty].)

The complaint alleges five causes of action (though a numbering error might lead one to believe there are four): (1) Breach of Written Promissory Note, (2) Breach of Guaranty Agreement, (3) Account Stated, (3) Money Lent; and (4) Money Paid, Laid Out, and Expended. The second cause of action is alleged against Dhoot and the others are against HD 2670 Walnut Blvd Member, LLC.

Plaintiff contends defendants refuse to comply with their repayment obligations and intend to sell the properties it seeks to attach here. Plaintiff contends defendants are likely to conceal any proceeds from the sales to prevent plaintiff from levying on such proceeds. Plaintiff attaches an email sent on September 16, 2025 demanding payment by the next day at 5:00 p.m. Plaintiff then filed this action on September 18, 2025. (See Steinle Decl., Ex. 3 [demand email].) In November 2025, plaintiff filed the present application for right to attach order and order for writ of attachment.

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that there is a history between these parties and Defendants expeditious behavior—both with respect to seeking trial preference and with bringing this motion sooner than most attorneys would—arrives in the context of substantial delays in investigating and resolving these parties' disputes.

With respect to HD 2670 Walnut Blvd Member, LLC, plaintiff seeks to attach 13 real properties and the following assets held in the name of the LLC: "real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit boxes, accounts receivable, and general intangibles." With respect to Dhoot, plaintiff seeks to attach, "[a]ll real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit boxes, accounts receivable, and general intangibles" in his name.

The applications are opposed by defendants, who argue plaintiff has failed to meet his burden to establish probable validity of the claim and has not shown a risk of irreparable harm. Defendants further contend the value of the property sought to be attached exceeds the amount of plaintiff's claim. Defendants generally agree with the background provided by plaintiff, including the amount of money loaned, the date loaned, and the terms of the documents.

Defendants argue that parties agreed to an oral modification of the Maturity Date after the project suffered significant schedule delays and setbacks. The alleged new date would be "after the Project was finished and Defendant was able to list the Property for sale." (Declaration of Premdip S. Dhoot in Support of Opposition, hereinafter "Dhoot Decl.," ¶8.) Accordingly, defendants argue the alleged debt is not yet due, but do not give a specific date. Based on such purported modification, Dhoot argues there was no default on the promissory note that would trigger his liability on the personal guaranty.

In reply, plaintiff denies any oral modification. A reply declaration by plaintiff's managing member, Jason Steinle states "At no time did the Plaintiff agree verbally or in writing to extend the maturity date of the underlying August 24, 2022 Promissory Note or August 24, 2022 Guaranty Agreement." (Declaration of Jason Steinle in Support of Reply, ¶2.) The declaration, however, is not signed. A previous version of the same declaration was filed on January 16, 2026 and that declaration is also not signed. An unsigned declaration is not competent evidence. (Code Civ. Proc., § 2015.5.) The Court assumes that counsel would not file a declaration unless it represented what Mr. Steinle would state under penalty of perjury. Absent such statement under penalty of perjury, however, the Court is not prepared to grant the applications.

Exemptions

A defendant who opposes a right to attach order must give notice of his objection, "accompanied by an affidavit supporting any factual issues raised and points and authorities supporting any legal issues raised." (Code Civ. Proc. § 484.060, subd. (a).) The defendant may make a claim of exemption with respect to his property in the opposition. (Code Civ. Proc. § 484.070.)

Here, Dhoot claims his personal property is exempt because it is not among the items listed in Code of Civil Procedure §487.010, subdivision (c) and amounts to less than "$8,725 in the aggregate." He also represents that he holds no title to any items listed in Code of Civil Procedure §487.010, subdivision (c).

Plaintiff has not opposed the claim of exemption. The right to attachment of property owned by a natural person requires an adequate description. "Personal property" is insufficiently specific, as set forth in the opposition. Accordingly, all references to "personal property" shall be omitted from the description of property with respect to Dhoot.

Standard

Attachment is a pre-judgment creditor's remedy. Generally, an order of attachment may be issued only in an action for a claim of money that is based upon an express or implied contract where the total amount of such claim is a fixed or readily ascertainable amount not less than $500. (Code Civ. Proc., § 483.010, subd. (a).) A plaintiff may obtain a right to attach if the plaintiff establishes the probable validity of plaintiff's claim. (Code Civ. Proc. § 484.090, subd. (a)(2).) "A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (Code Civ. Proc. § 481.190; see also *Loeb & Loeb v. Beverly Glen Music, Inc.* (1985) 166 Cal.App.3d 1110, 1120; see *Kemp Bros. Construction, Inc. v. Titan Electric Corp.* (2007) 146 Cal.App.4th 1474, 1476.) The Court must also find that the attachment is not sought for a purpose other than the recovery on the claim upon which the request for attachment is based and that the amount to be secured by the attachment is greater than zero. (Code Civ. Proc. § 484.090.)

Discussion

The applications and supporting declarations adequately support the amount claimed and make all required representations to procure attachment. Assuming plaintiff files a signed reply declaration responding to the issue of modification, plaintiff successfully demonstrates probable validity of its claims, and that the claims are ones upon which attachment is proper. (Code Civ. Proc., § 484.090(a)(1)-(2).) The attachment is not sought for purposes other than recovery on the claim, which amounts to a sum greater than zero. (*Id*. at (a)(3)-(4).)

Probability of Prevailing

Assuming plaintiff files a signed reply declaration responding to the issue of modification, plaintiff demonstrates a probability of prevailing on its breach of contract claim. Defendants have raised a modification defense that involves an adjustment to the due date. The defense appears to be insufficient for four reasons. First, while a written contract may be modified by oral agreement in certain circumstances (including execution and where there is new consideration), there is insufficient evidence of such circumstances here. (Civ. Code, § 1698 (b)-(c).) Second, with respect to the purported modification, defendants do not address the statute of frauds (Civil Code, §1624), which would bar oral modification. Third, while the promissory note is silent as to how the lender would extend the payment deadline (see Steinle Decl., Ex. 1, §3), the guaranty requires modifications of the underlying documents to be in writing (Steinle Decl., Ex. 2, ¶4.1). Finally, and perhaps most importantly, Steinle's reply declaration (assuming it is signed and refiled) denies that parties adjusted the Maturity Date.

Irreparable Harm

Defendants contend plaintiff fails to show "irreparable harm." Code of Civil Procedure, § 485.010 describes the "great or irreparable injury" prerequisite to obtaining attachment. The showing is satisfied where there is a danger that property may become unavailable. Such conditions exist where "[u]nder the circumstances of the case, it may be inferred that there is a danger that the property sought to be attached would be concealed, substantially impaired in value, or otherwise made unavailable to levy if issuance of the order were delayed until the matter could be heard on notice." (*Id*. at subd. (b)(1).)

This standard is satisfied here. While plaintiff presents no specific evidence that defendants intend to conceal funds or deprive plaintiff of an available source of recovery, defendants confirm in the opposition papers that some project properties have already been sold and the inferences permitted by the above-cited statute are sufficient.

Value of the Property Sought to be Attached

With respect to defendants' argument that they do not hold title to certain properties listed in the applications, and that the value of the properties sought to be attached exceeds the debt, their concerns are unfounded. Any property not owned by a particular defendant cannot be attached. Further, assuming such attachment leads to a lien, once the debt is satisfied, no further recovery would be warranted.

Undertaking / Conclusion

An undertaking is required prior to the issuance of a writ of attachment in order to pay the defendant for any wrongful attachment. (Code Civ. Proc., § 489.210.) Defendants argue the amount should be equal to the amount of the claimed debt ($248,328.77). Plaintiff responds that the defendants were required to show, through declarations, that the undertaking should be more than the statutory default, which is $10,000. (Code Civ. Proc., § 489.220 (a).)

Code of Civil Procedure, § 489.220 (b) states, the Court "shall" order an increased amount, but only where it finds "the probable recovery for wrongful attachment exceeds the amount of the undertaking." Here, defendants do not dispute that there is a debt owed (or that will be owed) in the amount shown in the documents. It is thus not clear to the Court what the monetary consequence of wrongful attachment would be. Accordingly, the amount of the undertaking shall be $10,000 per defendant for a total amount of $20,000.

Subject to (1) the plaintiff posting an undertaking in the amount of $20,000, (2) the striking of "personal property" in Attachment 9 to the Application with respect to Dhoot, as identified above, and (3) filing a signed declaration by Steinle by the time of hearing, the applications will be granted.

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20. 9:00 AM CASE NUMBER: MSC22-00460
CASE NAME: NATURA MANAGEMENT,LLC VS. AGRA TECH, INC.
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: AGRA TECH, INC.
TENTATIVE RULING:*

This matter has been reassigned to Department 16 pursuant to Code of Civil Procedure section 170.6 and reset for April 15, 2026.

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21. 9:00 AM CASE NUMBER: MSC22-00460
CASE NAME: NATURA MANAGEMENT,LLC VS. AGRA TECH, INC.
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 2ND AMENDED COMPLAINT**
FILED BY: AGRA TECH, INC.
TENTATIVE RULING:*

This matter has been reassigned to Department 16 pursuant to Code of Civil Procedure section 170.6 and reset for April 15, 2026.